

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2007-003538

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
MICHAEL TODD BARTA, LPC, LICENSE NO. 3099,

RESPONDENT.

IT IS HEREBY STIPULATED and agreed by and between the State Board of Licensed Professional Counselors Examiners ("Board") and Michael Todd Barta, LPC ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of case number 2007-003538. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. During his employment as a counselor at Casey Middle School, Respondent also maintained a private practice.
 - b. Respondent maintained files related to his private practice on his school computer, thereby failing to adequately protect the confidentiality of the clients to whom those records related.
5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated § 12-22-222(1) (g), C.R.S.

6. By virtue of the admissions in paragraph 4 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety and welfare.

PRACTICE RESTRICTION

7. During the period of probation, Respondent shall not provide professional counseling to any client eighteen years of age or younger.

PROBATION

8. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for at least two (2) years commencing from the effective date of this Order or the date Respondent's practice monitor is approved, whichever is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

9. The period of probation is tolled during any time that Respondent is not practicing professional counseling in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing professional counseling in the State of Colorado in accordance with this Order.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a professional counselor in the State of Colorado, is being monitored by a practice monitor and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Requests for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

12. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Within thirty (30) days of the effective date of this Order, Respondent shall submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include a Board-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitors shall meet the following criteria:

a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado; and

b. It is recommended that the practice monitor have a minimum of five years experience and not have been subject to professional discipline; and

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associated fall within this provision.

13. Respondent must have a practice monitor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to a suspension of his practice until a practice monitor is approved.

14. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, all investigative reports and all practice evaluation reports; read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

15. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur once a week (for at least one hour, or such longer time as the practice monitor deems necessary) or for every twenty hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether the Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

16. The practice monitor shall submit written reports to the Board on the fifth day of the month following the first month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first twelve (12) reports. After the submission of the first twelve (12) reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

PRACTICE EVALUATION

17. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice, his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

18. If the Board determines from the practice evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice and/or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease the practice of professional counseling or any part of the practice that the Board determines, based upon the practice evaluation report, he is not qualified, competent, and/or safe to conduct. Based upon the Board's findings and the practice evaluation report, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and/or safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and/or safe to practice, Respondent may assume full practice.

19. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor thirty (30) days notice prior to requiring the practice monitor's attendance at the Board meeting.

20. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, and/or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. The therapist will send a copy to the practice monitor and to Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

21. Respondent shall take every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified in this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within thirty (30) days. If, at any time Respondent fails to have a practice monitor in place, Respondent shall cease the practice of professional counseling.

22. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than sixty (60) days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order. If Respondent fails to have a new practice monitor in place before the termination date, Respondent shall cease the practice of professional counseling.

THERAPY

23. Respondent shall undergo therapy with a mental health provider approved by the Board ("therapist") for at least six months and until such therapist recommends discontinuation, for issues to include impulsivity and boundary issues as a term of probation. The therapist shall conduct therapy and report to the Board as follows:

- a. The psychotherapy must consist of individual or group sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every month, unless otherwise approved by the Board based on recommendations of the therapist; and
- b. The therapist shall report to the Board in writing both the progress of the therapy and whether Respondent is able to practice with reasonable skill and safety for his clients and must send a copy of each report to the practice monitor and Respondent. The therapist must submit his/her first report by the fifth day of the month following the first month of the therapy. The therapist shall submit subsequent reports by the fifth day of every third month thereafter (i.e. on a quarterly basis); and
- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order and the Boards' file, and must state that s/he understands the duties and responsibilities s/he is undertaking as Respondent's therapist.

24. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders him unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his case, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within forty-eight (48) hours of forming his/her opinion. The therapist shall send a copy of such report to the practice monitor and Respondent when she sends the report to the board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

25. Until the Board has determined that Respondent has met the psychotherapy requirement contained in this Order,

- a. either Respondent or his therapist may terminate the therapeutic relationship upon written notice to the other and the Board not less than sixty (60) days before the date of termination. (The notice shall state the reason for the termination.);

b. if Respondent does not have another Board-approved therapist prior to the termination date, Respondent shall cease the practice of professional counseling until he has another Board-approved therapist in place; and

c. the subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

26. Until the Board has determined that Respondent has met the psychotherapy requirement contained in this Order, Respondent cannot practice professional counseling during the period of probation if he is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based upon the recommendation of the therapist.

CONTINUING EDUCATION

27. During the period of probation, Respondent must successfully complete at least twenty (20) hours each year of Board-approved professional continuing education courses in the areas of confidentiality, record-keeping, ethics and dual relationships. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

EARLY TERMINATION

28. Respondent may petition the Board for early termination of probation as set forth more fully below. The parties agree that the Board's decision regarding such a petition shall be made at the sole discretion of the Board. Respondent hereby waives the right to appeal the Board's decision on such a petition. Respondent may make such a petition:

a. after successful completion of no less than twelve months/four quarters of practice monitoring and

b. after successful completion of 20 hours of continuing education as described in paragraph 27 and

c. upon written recommendation of the practice monitor and

d. provided Respondent is in full compliance with all terms of this Order.

TERMS AND CONDITIONS

29. Respondent will strictly observe the prohibitions set forth in the Mental Health Practice Act, § 12-43-222, *et seq.*, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

30. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing professional counseling, unless such supervision or consultation is monitored in accordance with this Order.

31. All expenses incurred or associated with the practice evaluation, therapy, practice monitoring, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

32. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his practice evaluator, practice monitor, or therapist to provide records and information obtained in the normal course of practice evaluation, practice monitoring, or treatment to the Board if the practice evaluator, practice monitor, or therapist determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders him/her unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the practice evaluator, practice monitor or therapist in the normal course of practice evaluation, practice monitoring, or treatment if the practice evaluator, practice monitor, or therapist determines that he is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders him unable to treat clients with skill or safety or that may endanger the health or safety of persons under his care.

33. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within thirty (30) days of the effective date of such change.

34. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

35. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with a full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

36. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of C.R.S. § 12-43-222., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-43-224, C.R.S.

37. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of

Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

38. Respondent shall obey all state and federal laws while this Order is in effect.

39. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

40. This Order shall become effective when accepted and signed on behalf of the Board.

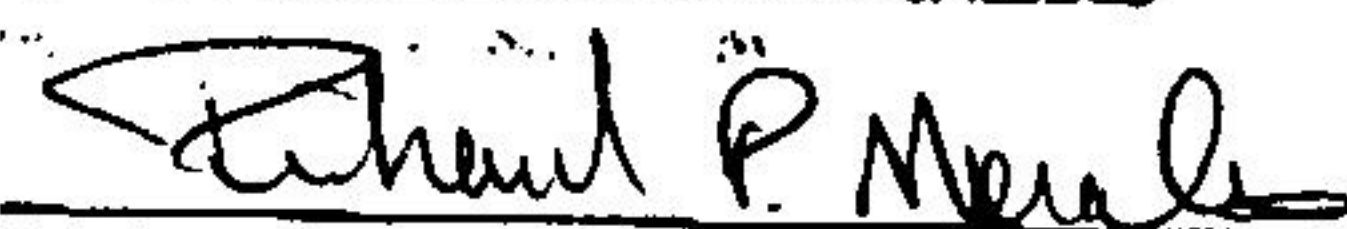
41. This Order shall be admissible as evidence at any hearing held before the Board.

42. This Order shall be a public record in the custody of the Board.

RESPONDENT


MICHAEL TODD BARTA, LPC

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**


Richard Morales, Program Director
Board of Licensed Professional Counselor
Examiners

Effective Date: This 29 day of

May 2008

APPROVED AS TO FORM:

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